

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 12, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. White, and pursuant to support received by Mr. Cook and Mr. Roybal, Agenda Items #16 and 17 were removed from the Consent Agenda. Mr. Shanor stated he would abstain from voting participation on the Consent Agenda due to a conflict of interest involving the items being removed (business relationship involving the State Loan and Investment Board), and vacated Council Chambers. Remaining items were approved. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on January 22, 2018. Motion (per Consent Agenda) carried.

Mr. Cook and Mr. Roybal each declared a conflict of interest (voucher payable to Mr. Cook personally and business interest in voucher payable to Cowboy Dodge, Inc. respectively) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Cook and Mr. Roybal returned to Chambers.

Mr. Shanor moved to suspend the rules by bringing forward Agenda Item #24 (c) before Agenda Item #7 to allow for consideration of the Sweetgrass Master Annexation Agreement prior to the affiliated Sweetgrass Annexation Ordinance on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body.

Sweetgrass PUD (Planned Unit Development) annexation - Master Annexation Agreement between the City of Cheyenne and Sweetgrass Land Co., LLC; Lummis Livestock Company, LLC, and Arp and Hammond Hardware Company, for an area commonly known as the Sweetgrass Annexation, being a portion of Sections 8 and 9, all of the W½ Section 14, a portion of the E½ E½ of Section 17, and all of Sections 15, 16, and 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming. Reporting for Public Services Committee, Mr. Roybal moved to approve, seconded by Mr. Luna. Mr. Roybal moved to amend by substitute agreement dated

January 31, 2018, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6784)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C) (postponed from 1/22/2018). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Comment was made in support of development plans for the property. Motion carried. Voting “yes” – all members of the governing body. (#4215)

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition; and adjacent portions of Gysel Place and Van Buren Ave.; situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#4216)

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County AR Agricultural Residential to MR Medium-density Residential and MUB Mixed-use Business Emphasis for all of Tracts 31 and 32; and a portion of Tract 39, Hill Heights Addition; situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4217)

ORDINANCE – 2nd READING – Vacating the 16-foot alley situated in Block 329, Original City, and Federal Court located in Block 329, City of Cheyenne, Laramie County, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#4218)

ORDINANCE – 2nd READING – Vacating that portion of the 16-foot alley right-of-way lying east of the Burlington Northern Railroad Spur Track right-of-way in Block 412, adjacent to Lots 1 thru 8, and 16 thru 22, Block 412, Original City, City of Cheyenne, Laramie County, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4219)

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development (UDC), amending Sections 1.4.4.a and c, Section 5.1, Table 5-1, Section 5.7.5, and Table 7-10 of the UDC to rename and clarify the definition for group dwelling, to combine and clarify the definitions for adult care – assisted living and adult care – nursing home land uses, combining assisted living facilities, nursing homes and group housing for specific use

standards, clarifying where assisted living/nursing homes would be permitted, and adding residential and nonresidential zoning districts where group housing would be allowed as a conditional use. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#4220)

ORDINANCE – 1st READING – Amending Section 10.52.200, Recreational vehicle, trailer-defined – Parking permitted in certain places, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Case)

RESOLUTION – Announcing the City of Cheyenne’s intent to expend funds to enhance the Depot Plaza by constructing a water feature for economic development purposes, to include a historically important statue. Darren Rudloff, Visit Cheyenne, spoke in support of the water splash feature and provided information and reasons for support by four local economic development groups, who noted the feature was included in the Downtown Cheyenne Core Plan presented to the governing body a couple of years ago. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Roybal. Mr. Laybourn moved to amend by substitute, seconded by Mr. Case. Information on changes contained within the substitute resolution were provided by Mr. Shanor, noting the statue feature may be a future project but not specifically included at this time and that, due to other City project funding needs, funding for the project would be a public/private partnership. He stated the substitute changes (reduces) the City’s funding commitment amount to \$250,000.00 with anticipation that private donations of at least \$250,000.00 would be received by a sunset date to help with the splash pad costs. Mr. Shanor confirmed the City’s obligation to expend its funds is conditional on \$250,000.00 being privately raised before the sunset date of June 1, 2019. Discussion included the sunset date and potential option of amending the resolution at that time; future maintenance, costs and staff expertise involving the water feature; seeking information from other communities who have a similar feature regarding operational and maintenance costs; options involving project cost; providing a quality water feature, and record keeping regarding monies that may be donated. During discussion, Mayor Orr briefly left the meeting with Council President Rinne assuming duties of the chair; duties were returned to Mayor Orr prior to a vote on the substitute resolution. Upon inquiry, Teresa Moore, Director of Community Recreation and Events, advised an estimate of maintenance costs is pre-mature at this time as a design for the feature needs to be prepared and reviewed. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mayor Orr voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mayor Orr voting “no”. (#5910)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Whitney Ranch, 1st Filing, a replat of all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition, situated in Section 23, Township 14 North, Range 66 West, of the 6th P.M., City of Cheyenne, County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard). Mr. Roybal moved to adopt with staff conditions #1 through 4, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#5911)

RESOLUTION – Authorizing the submission of an application to the Wyoming Business Council Business Ready Community Grant and Loan Program for a \$3,000,000.00 Community Readiness Grant, and up to \$3,000,000.00 in Business Ready Community loan funding, for the Happy Jack Road/F.E. Warren Air Force Base Enhanced Use Lease Infrastructure Project. Dale Steenbergen, Greater Cheyenne Chamber of Commerce, spoke in support of the application, citing the opportunity for the City to address the lack of affordable military housing in the community through the Project, and commenting that numerous military members are commuting from northern Colorado due to the housing shortage. Donn Edmunds commented that individuals perhaps preferred living in Colorado. Mr. White moved to adopt, seconded by Mr. Luna. Mr. White moved to amend by substitute dated February 8, 2018, seconded by Mr. Roybal. Robert Briggs, Planning and Development Director, provided information on the changes contained in the substitute resolution, which includes wording on improvements to the public rights-of-way. Mr. Shanor stated he would abstain from voting participation on the agenda item due to a conflict of interest (business relationship involving the State Loan and Investment Board), and vacated Council Chambers. Discussion included emergency service providers to the Project area and local housing / rental rates. Motion to amend carried. Voting “yes” – all members of the governing body present in Council Chambers. Main motion as amended carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Chambers. (#5912)

RESOLUTION – Authorizing the submission of a loan application to the Wyoming Business Council Business Ready Community Grant and Loan Program, providing for repayment and affirming compliance with applicable state laws and regulations, for a loan in an amount not to exceed \$3,000,000.00 for the Happy Jack Road/F.E. Warren Air Force Base Enhanced Use Lease Infrastructure Project. Dale Steenbergen, Greater Cheyenne Chamber of Commerce, provided information in response to inquiry raised on the previous resolution regarding housing rates. He advised the governing body may be able to assist with determining affordable housing rates as part of the communication between the City and F.E. Warren. Mr. White moved to adopt, seconded by Mr. Luna. Mr. White moved to amend by substitute dated February 8, 2018, seconded by Mr. Johnson. Mr. Shanor stated he would abstain from voting participation on the agenda item due to a conflict of interest (business relationship involving the State Loan and Investment Board), and vacated Council Chambers. Upon inquiry, Mr. Steenbergen provided information on the lack of local military housing; estimated number of military personnel residing outside of the community, and market analysis that had been conducted on the topic. Upon further query, Mr. Steenbergen advised an estimated 300 to 350 military housing units may be provided as part of the Project and, if military personnel do not require all of the units, some units may be available to local residents. Motion to amend carried. Voting “yes” – all members of the governing body present in Council Chambers. Main motion as amended carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Chambers. (#5913)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction Account Grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to purchase cameras for Cheyenne’s police cars, police body cameras, micro cameras and necessary support items. Chief Brian Kozak, Cheyenne Police Department, provided information on: Proposed implementation of a video and body camera

program; research on the topic and proposed equipment; state legislative action resulting in state laws addressing privacy and public records; internal committee that was formed to review the use of video and body cameras, and program benefits. He noted a policy has been developed, reviewed and approved by outside interested parties and that the grant is a 50/50 match with the City's funding portion coming from proceeds from the sale of the former Police Department building. Mr. White moved to adopt, seconded by Mr. Luna. Mr. Shanor stated he would abstain from voting participation on the agenda item due to a conflict of interest (business relationship involving the State Loan and Investment Board), and vacated Council Chambers. Upon inquiry, Chief Kozak advised the City of Laramie has utilized a similar program for about three years. Comment was made in opposition to the program. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers with the exception of Mr. Johnson voting "no". Following announcement of the vote, Mr. Shanor returned to Chambers. (#5913)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2018 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#5915)

[CA] RESOLUTION – Supporting the appropriation of state funding for Wyoming cities and towns during the 2018 budget session of the Wyoming Legislature. Motion (per Consent Agenda) carried. (#5916)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVS-2018-13827 improving criminal justice responses to sexual assault, domestic violence, dating violence and stalking program (formally known as the grants to encourage arrest policies and enforcement of protection orders program). Motion (per Consent Agenda) carried. (#5917)

[CA] RESOLUTION – Supporting the Continuing Education Program offered by the Wyoming Association of Municipalities and Local Technical Services a/k/a Leadership Training Services, and authorizing the execution of an amended Contract for Services regarding the provision of such services – referred to Finance Committee (Sponsor – Mr. White)

[CA] Sweetgrass 1st Filing Preliminary Plat Subdivision consisting of unplatted lands situated in the NW¼ of Section 16 Township 13 North, Range 66 West, 6th P.M., City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee.

Agreement between the City of Cheyenne and SAA Enterprises – Steve Avila, for the purpose of sponsoring the CABA (Continental Amateur Baseball Association) 18U Wood Bat World Series during the summer of 2018. Jay Folks and Rick Thompson, Cheyenne Mustangs Baseball, spoke in opposition to the proposed agreement and provided information on past experience the Mustangs have had involving a contract between the Mustangs and Mr. Avila and his company relative to the 2017 CABA tournament held in Cheyenne last summer. Their discussion topics included contractual provisions they felt were not fulfilled, and dissatisfaction with the services that had been provided. Joe Dougherty questioned several sections of the proposed contract for clarification, including contract topics involving event costs; registration fees; team participants; proposed credit arrangement outlined in the agreement, and services to be

provided. Jason Sanchez, Assistant Director, Community Recreation and Events, summarized a brief history of last year's CABA event involving a contract between the City and Cheyenne Mustangs, and subsequent communication from Mr. Avila offering to provide future tournament services through contract with the City. Mr. Sanchez also provided information in response to Mr. Dougherty's questions. Upon inquiry, Sylvia Hackl, City Attorney, advised details included in the proposed agreement were received from Mr. Sanchez and Mr. Avila, and noted there is no contract to force specific performance. Mr. White reported the motion to approve the item failed at Finance Committee, therefore, there was no recommendation from Committee. Mr. Case moved to approve, seconded by Mr. White. Lengthy discussion followed and included the following topics: Lack of teams anticipated to participate in last summer's tournament and resulting reduced event revenue; contract provisions that were not met; supporting youth baseball in the community; up-front money expended by the City and concern with the financial "credit" proposal(s) as a pay-back provision contained in the proposed agreement, which would not be "real money"; reputation of SAA Enterprises and Mr. Avila, and current status of the company; registration and affiliated fees; splitting of event revenue and the amount of revenue threshold that would need to be realized before any real dollars would be received by the City. Upon inquiry, Mr. Thompson confirmed the Mustangs' contract with Mr. Avila was still in effect and advised they were unaware until recently that Mr. Avila had contacted the City proposing a separate agreement to provide future CABA tournaments. Motion to approve failed. Voting "no" – all members of the governing body.

Following a brief recess, Mayor Orr reconvened the meeting at 8:15 p.m.

[CA] Professional Services Agreement between the City of Cheyenne and HDR Engineering, Inc., Cheyenne, Wyoming, for construction management services in support of the Christensen Road Overpass and Corridor Project (1% Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$772,767.00). (#6785)

Professional Services Agreement between the City of Cheyenne and Novo Benefits, LLC, for employee benefits consulting and brokerage services. Denise Freeman, Director of Human Resources, provided a brief history of last year's change in the City's employee health plan and involvement by the consultant, noting benefits of having an outside professional firm assist with evaluating and negotiating the City's plan. She advised an Employee Benefits Committee has been formed; the RFP process was followed in seeking professional services proposals, and that the Committee is recommending Novo Benefits. Mr. White moved to approve in an amount not to exceed \$208,500.00, seconded by Mr. Luna. Upon inquiry, Diana Madvig, Novo Benefits, provided information on cost savings the company achieved for another customer. Motion carried. Voting "yes" – all members of the governing with the exception of Mr. Cook and Dr. Rinne voting "no". (#6786)

[CA] Temporary Construction Easement Agreement with George M. Zak and Leslie S. Zak, for the deposit of spoil dirt in conjunction with the Christensen Road Railroad Overpass and Corridor Project (1% Specific Purpose Sales and Use Tax) – referred to Finance Committee.

[CA] City of Cheyenne City of Cheyenne, Wyoming, Christensen Road Right-of-Way Purchase Agreement with Holly L. Bruegman (1% Specific Purpose Sales and Use Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-13-18 for furnishing one new mobile observation platform for the Cheyenne Police Department (Homeland Security Grant). Lieutenant Terrance Bell, Cheyenne Police Department, provided a brief background on the grant and purpose of acquiring the equipment, and described platform features. Upon inquiry, Lt. Bell confirmed only one bid had been received. Mr. White moved to accept the bid submitted by Industrial Video and Control of Greenville, SC, in an amount not to exceed \$140,000.00, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

[CA] Consideration of Bid #S-7-18 for a contract between the City of Cheyenne, Public Works Department, and W.L. Contractors, Inc., Arvada, Colorado, for the 2018 Traffic Signal Installation Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-9-18 for a contract between the City of Cheyenne, Planning and Development Department, and American Contracting of Wyoming, LLC, Cheyenne, Wyoming, for the Warren Rest House Restoration, Phase 2, Project – referred to Finance Committee.

[CA] Consideration of Bid #S-8-18 for a contract between the City of Cheyenne, 1% Construction Division, and Reiman Corp. and STC Construction Co., Inc., a Joint Venture, Cheyenne, Wyoming, for the FY 2018 Miscellaneous Concrete Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6498 between the City of Cheyenne and DHM Design Corporation, Denver, Colorado, for additional groundwater sampling and analysis for West Edge Engineering Design Services / Civic Center Commons Project (FEMA Pre-Disaster Mitigation Grant funds). Motion (per Consent Agenda) carried. (#6498)

[CA] Contract Renewal No. 1 to Contract No. 5980 between the City of Cheyenne and Warren Federal Credit Union for limited public right-of-way use for fiber optic communications system installation – referred to Finance Committee.

[CA] Contract Renewal No. 1 to Contract No. 6292 between the City of Cheyenne and the Girl Scouts of Montana and Wyoming for the lease of 45.93 acres of City-owned real property – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6625 between the City of Cheyenne and Western Research and Development, Ltd., for additional design services for the FY 2017-18 On-Call Traffic Engineering Services Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

Appointment of Amy M. Allen as City Engineer for the City of Cheyenne. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (Mayoral appointee). Mayor Orr announced the oath of office for Ms. Allen would be administered by Municipal Court Judge Mark Moran the next morning, February 13th, at 9:00 a.m. in the Mayor’s Conference Room, and Council members, staff and the public were welcome to attend.

[CA] Consideration to purchase Odyssey fareboxes for the Cheyenne Transit Division, and authorizing the Mayor and City Clerk to execute a Professional Services Agreement between the City of Cheyenne, Transit Division, and Genfare, Elk Grove Village, Illinois, in conjunction with the purchase. Motion (per Consent Agenda) carried (amount not to exceed \$205,777.20).

[CA] Consideration to purchase, by Community Recreation and Events Department, a new Montrose with screen restroom building for Myler Park from CXT, Inc., Spokane Valley, Washington (CDBG grant funds) – referred to Finance Committee.

Announcement was made of a Public Hearing to be held Monday, February 26, 2018 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for renewal applications for existing City liquor licenses and permits (retail, restaurant, limited retail, resort, bar and grill licenses and microbrewery and satellite distillery permits) filed with the City Clerk’s office.

Announcement was made that due to the Presidents’ Day Holiday on Monday, February 19, 2018, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O’Neil Avenue, Room 104, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, February 20, 2018 at 11:00 a.m. and Public Services Committee will meet Wednesday, February 21, 2018 at Noon.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:28 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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